

ORDER SHEET

LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Writ Petition No.21349/2015

Zaigham Imtiaz

VS

Iqbal Ahmad Ansari etc.

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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15.7.2015 Mr. Manzoor Hussain Butt, Advocate on behalf of the petitioner.

Through this writ petition, the petitioner has prayed for setting aside the interim order dated 11.6.2015 passed by the learned District Judge Consumer Court, Lahore whereby he entertained the complaint of respondent No.1.

2. Precisely the facts for the disposal of this petition are that respondent No.1 got installed a solar energy system at his shop under the name and style of “Milli Shoes” situated at Shahrah-e-Quaid-e-Azam, Lahore, from the petitioner but the same did not work properly whereupon respondent No.1 contacted the petitioner for its replacement/repair but in vain, therefore, respondent No.1 served a legal notice upon the petitioner for redressal of his grievance but the same was not replied. Hence, respondent No.1 filed a complaint under Section 7, 8, 13 and 25 of the Punjab Consumer Protection Act, 2005 against the petitioner before the District Judge

Consumer Court, Lahore, who vide order dated 11.6.2015 entertained the same. Hence, this writ petition.

3. It has been contended on behalf of the petitioner that the impugned order is against the law and facts of the case; that respondent No.1 does not fall within the definition of consumer because he used the solar energy system for commercial purpose; that the system became out of order due to the negligence and non-observing the precautions; that the complaint is barred by time under Section 28 (4) of Punjab Consumer Protection Act, 2005; that while passing the impugned order, the learned Presiding Officer has not applied his judicious mind to the facts and circumstances of the case and has erroneously held that respondent No.1 falls within the definition of consumer, as such, the impugned order is not sustainable in the eye of law and is liable to be set aside.

4. Heard. Record perused.

5. The stance of the petitioner is that as respondent No.1 used the solar energy system for commercial purpose, therefore, he does not fall within definition of consumer while the stance of respondent No.1 is that as he is not doing the business of sale and purchase of solar energy system, as such, the use of solar energy system at his business place cannot be termed as commercial purpose. In this background of the case, the only controversy which requires to be solved by this Court is

that whether respondent No.1 falls within the definition of consumer or not as given in Section 2(c) of the Punjab Consumers Protection Act, 2005. The definition of “Consumer” is reproduced as under: -

“Consumer means a person or entity who --

- i) buys or obtains on lease any product for a consideration and includes any user of such product but does not include a person who obtains any product for resale or for any commercial purpose; or*
- ii) hires any services for a consideration and includes any beneficiary of such services”*

Explanation: For the purpose of sub-clause (i), “Commercial purpose” does not include use by a consumer of products bought and used by him only for the purpose of his livelihood as a self-employed person”.

6. In relation to products, the careful perusal of Section 2 (c) of the Act *ibid* reveals that consumer means a person or entity who buys or obtain any product against a consideration; and any user of such product but does not include a person or entity who obtains any product for resale or for any commercial purpose which does not include use by a consumer of product bought and used by him only for the purpose of his livelihood as a self-employed person.

In the definition of consumer two words i.e. person and entity have been used. The word person has not been defined in the Act *ibid*, as such, the provisions of Section 2 of the Punjab General Clauses Act, 1956 will be invoked, which clearly says that, *in this Act and in all the Punjab Acts unless there is anything repugnant in the*

subject or context, definition given in the General Clauses Act would apply, and Section 2(47) of the Punjab General Clauses Act, 1956, defines a person as follows: -

“Person shall include any company or association or body of individuals, whether incorporated or not”

whereas the word entity is defined in Section 2(e) of the Punjab Consumer Protection Act, 2005, which reads as under:-

“Entity means an organization that has a legal identity apart from its members”

The definition of consumer is very much comprehensive, which not only covers consumer of products but also consumer of services. It extends from a person who buys any commodity to consume either as eatable or otherwise from a shop, business place, corporation, store, fair price shop to use of private or public service. In Oxford Dictionary the word consumer is defined as, **‘a purchaser of goods or services’** while in Black’s Law Dictionary it is explained as, **‘one who consumes’** and similar meaning of consumer i.e **‘a person who consumes’** are given in Webster’s Dictionary.

7. Now comes to the word resale, which is clear enough in its meaning, however, controversy has arisen with respect to meaning of the expression “commercial purpose”, which has also not been defined in the Act and it is settled principle of law that when any expression/word has not been defined in the Act, then its

common parlance meaning should be given and according to that, a commercial purpose is that purpose, **the object or aim of which is to make profit**. According to the following dictionaries, the expression commercial means: -

Dictionary	Meaning
Collins English Dictionary	Connected with, or engaged in commerce, mercantile; having profit as the main aim
Chambers Twentieth Century Dictionary	Interchange of merchandise on a large scale between nations or individuals extended trade or traffic
Concise Oxford Dictionary	Financial transactions especially buying and selling of merchandise, on a large scale
Wharton’s Law Lexicon	the intercourse of nations in each other’s produce and manufacture, in which the superfluities of one are given for those of another, and then re-exchanged with other nations for mutual wants. Commerce relates to our dealings with foreign nations, colonies etc.; trade for mutual dealings at home
Black’s Law Dictionary	The exchange of goods, productions, or property of any kind, the buying, selling, and exchanging of articles. Intercourse by way of trade and traffic between people or States and the citizens or inhabitants thereof including not only the purchase, sale, and exchange of commodities, but also the instrumentalities and agencies by which it is promoted and the means and appliances by which it is carried on, and transportation of persons as well as of goods, both by land and sea

As per Stroud’s Judicial Dictionary the term “commercial’ is defined as under:-

“Commercial-(1) Commercial action includes any clause arising out of the ordinary transactions of merchants and traders and, without prejudice to the generality of the foregoing words, any cause relating to the constructions of a mercantile document, the export or import of merchandise, affreightment, insurance, banking, mercantile agency and mercantile usage.
(2) An incorporated canal company whose profits arose from tolls, was held a commercial company, or a company associated for commercial

purposes, and, as such, liable to become bankrupt under joint stock companies Act 1844”

Here it will be beneficial to reproduce the relevant portion from a judgment of Supreme Court of India in the case of Laxmi Engineering Works VS P.S.G. Industrial Institute [(1995) 3 SCC 583 & AIR 1995 SC 1428] where the word commercial purpose has been defined: -

“In the absence of a definition, we have to go by its ordinary meaning. Commercial denotes pertaining to commerce (Chamber’s Twentieth Century Dictionary); it means connected with, or engaged in commerce; mercantile; having profit as the main aim (Collins English Dictionary) whereas the word commerce means financial transactions especially buying and selling of merchandise, on a large scale; (Concise Oxford Dictionary). The National Commission appears to have been taking a consistent view that where a person purchases goods with a view to using such goods for carrying on any activity on a large scale for the purpose of earning profit he will not be a consumer within the meaning of Section 2(d)(i) of the Act. Broadly affirming the said view and more particularly with a view to obviate any confusion the expression large scale is not a very precise expression the Parliament stepped in and added the explanation to section 2(d)(i) by Ordinance/ Amendment Act, 1993. The explanation excludes certain purposes from the purview of the expression commercial purpose – a case of exception to exception”

It is made clear here that in the aforesaid judgment, the Supreme Court of India has held that the term commercial purpose must be interpreted considering the facts and circumstances of each case.

8. Thus from the above discussion, it is very much clear that the words “commercial purpose” would cover an undertaking, the object of which is to make profit out of the undertakings. In the present case, the petitioner

installed the solar energy system after receiving the consideration at the shop of respondent No.1 where he admittedly does work of selling the shoes and the purpose of installation of this solar energy system was for providing the better atmosphere to the customers who comes there to buy the shoes etc. as well as for the facilitation of the workers who work there and no benefit by way of profit was accrued to respondent No.1, improving its balance sheet, in view of the definition of the word commerce, given above, and under no circumstances, respondent No.1 could be said to be indulging in any commercial activity on a large scale because it is not proved that either he used the said solar energy system for operating the machines, which use in manufacturing the shoes etc. or he supplied the power/energy to others shops. Hence, according to Section 2(c) (i), respondent No.1 falls within the definition of consumer and the Presiding Officer of Consumer Court, Lahore has rightly observed that respondent No.1 has purchased the solar system from the petitioner for using it at his business premises which is meant for selling of shoes and not for sale of solar system.

So far as the contention of the learned counsel for the petitioner that the complaint is hopelessly barred by time; and that the solar energy system has become out of order due to its misuse or non-observing the precautions, it is submitted that the said questions can appropriately

be dealt with and decided by the learned Presiding Officer, District Consumer Court, Lahore because any verdict on these questions by this Court will affect the case of either party at trial.

9. Even otherwise, the order impugned is an interim order and it is settled principle of law that writ petition against an interlocutory/interim order is not maintainable.

In this regard, reliance is placed on the cases of “Syed Saghir Ahmad Naqvi VS Province of Sindh through Chief Secretary, S&GAD, Karachi and another” (1996 SCMR 1165), “Mst. Seema Begum VS Muhammad Ishaq and others” (PLD 2009 SC 45) and “Liaqat Abbas Bhatti VS Election Commission of Pakistan through Secretary, ECP and others” (PLD 2010 L 610).

10. In view of the above, the instant writ petition is dismissed in limine being devoid of any force.

(Ch. Muhammad Iqbal)
Judge

Naeem

Announced in open Court on 23.7.2015.

Approved for reporting.

JUDGE